

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN KAZAKHSTAN

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Kazakhstan, grounded in the Environmental Code's four-category system, integrated permits based on best available techniques, public hearings and the public environmental review, and Aarhus rights that the courts have applied directly

This guide uses the Kazakh legal terms you will actually encounter (the categories I to IV, the integrated environmental permit and BAT, screening and the environmental impact declaration, public hearings and the public environmental review, the ecoportal, and so on), each explained in plain language where it first comes up. The Environmental Code is recent and continues to be amended, and rules on hearings and strategic assessment have changed since it came into force; the core mechanics below apply, but check the current text.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Kazakh and Russian terms are given with a short English gloss.

A note on money. Budgets in this guide are in tenge (KZT). Every figure is indicative — but note one Kazakh feature that genuinely affects strategy: suing a **company** carries the risk of paying the other side's legal costs if you lose, while challenging a **state body** is cheaper and, in practice, more commonly done and more often won.

A note on where to look first. Notices of upcoming **public hearings** are published on the state **ecoportal**, on agency websites and in the media. Checking the ecoportal is the single cheapest and most useful habit a Kazakh community can adopt.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Kazakhstan, and the country's legal framework was substantially rebuilt to make that more possible. The **Environmental Code** adopted in January 2021 and in force from July that year was developed over some seven years, and the government's own account of why it was needed is unusually candid: the previous system suffered from **low efficiency of environmental impact assessment and permits**, outdated waste rules, an inappropriate method of valuing environmental damage, and **limited public participation in environmental control**. The Code's organising principle is that the **polluter pays and fixes**.

Its architecture is European in shape. Facilities are sorted into **four categories** by how much harm they may do.

Category I — the most hazardous, including installations whose gross emissions reach a thousand tonnes or more — must undergo a **mandatory environmental impact assessment** and must hold an **integrated environmental permit**, a single authorisation granted only where the operator uses one or more **best available techniques** drawn from official BAT reference books, and containing technological standards, emission standards and energy-efficiency measures.

Category II goes through a **screening** procedure; **Category III** requires only an **environmental impact declaration** filed by the operator; **Category IV** requires neither permit nor declaration. **That classification is the most important fact about any project you face**, because it determines whether there will be an assessment, a permit, and a hearing at all.

Two participation instruments matter especially. The Code provides for **public hearings**, with notices published on the state **ecoportal**, on agency websites and in the media. And it provides for a **public environmental review** — a procedure by which members of the public may organise their own environmental review, appointing their own experts, alongside the state review. Kazakhstan is also a **Party to the Aarhus Convention**, and this is not merely formal: the **Supreme Court has applied Article 9 of the Convention directly**, in a case brought by an environmental NGO over an unreliable official response concerning an environmental permit, and Kazakh jurisprudence on the Convention has been held up to other Parties as an example. Members of the public here pursue environmental disputes through the courts relatively actively — most often against state bodies — and **frequently succeed in access-to-information cases**.

The honest counterweight is substantial and comes largely from Kazakhstan's own environmental lawyers. They argue that the 2021 Code and the new rules on hearings did **not** cure the underlying defect: the arrangements amount in practice to **revealing public opinion** rather than securing effective participation, in which people understand the procedures, how to use them, and what results they can expect. **Strategic environmental assessment** was introduced for state programmes and territorial and urban plans from 2024, but has not yet been applied in practice. And there is a specific, practical deterrent: while challenging a **state body** is comparatively accessible, suing a **company** brings higher court fees, the risk of counterclaims, and potential liability for the other side's legal costs.

What "winning" realistically means. Rarely a large industrial project cancelled. More often: a project's **category challenged** so that a real assessment and permit are required; a **hearing** actually held with objections recorded; **information obtained** — the area where the public most often wins; a **public environmental review** producing an expert conclusion that the state review must confront; permit conditions and **BAT requirements** tightened; an **environmental performance improvement programme** enforced; or a decision of a state body **set aside** in the administrative courts. The realistic goal is to use the category question, the ecoportal, the information right and the public review — the four things that cost least and yield most.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — establish the category, the instrument, and the hearing date.
2. **Documentation** — build a record strong enough for the hearing, a public review, and a court.
3. **Local opposition** — organise so the hearing is filled and a public review is possible.
4. **Legal challenges** — information requests, the hearing record, the public environmental review, and the administrative courts.
5. **Media strategy** — coverage that raises the cost and reaches technical allies.

No single step wins alone. Here the combination that works is **the category question plus the information right plus a public environmental review**.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Kazakhstan's tilt is that participation is formally provided but thin in practice, and litigation against companies is financially risky. Assessing that honestly helps you choose the right tools: the strongest routes are **contesting the category, using the information right**, where the public most often wins; **organising a public environmental review**; and **challenging the state body rather than the company** where you can. Section 13 deals honestly with tilted situations.

How to use this guide

Read Sections 1–3 once. Work Section 4 immediately if a project has appeared on the ecoportal. Sections 5–7 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you judge how far to take it.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Kazakhstan is a unitary republic with **oblasts** and cities of republican significance, **districts**, and local representative bodies (**maslikhats**) alongside executive administrations (**akimats**) headed by an **akim**. Environmental regulation rests on the **Environmental Code** of 2021, and access to information, participation and justice are also governed by Kazakhstan's obligations under the **Aarhus Convention**.

The bodies that decide — and what each one controls

The authorised environmental body. The central ministry responsible for ecology and environmental protection administers the Code: it receives applications, conducts the **state environmental review**, issues **integrated environmental permits** and **environmental impact permits**, maintains the registers, and enforces. Applications for integrated permits are submitted **electronically**.

The local executive body (akimat). Under the old system the local municipality was effectively the sole decision-maker on assessment; the 2021 Code changed that balance. Akimats remain central to land allocation, local planning and the practical organisation of hearings, and are a genuine political target.

The maslikhat. The elected local representative body, which can raise issues, request information and take positions — an under-used route for communities.

The state environmental review. The formal expert examination of a project's environmental documentation, with a defined procedure for **considering disagreements** — meaning objections are not simply absorbed, but have a route.

The public environmental review. A distinct, citizen-side instrument: members of the public may **organise their own environmental review**, with a designated organiser and their own experts. Its conclusion is a document the process must reckon with, and it is the strongest formal instrument the Code gives the public.

The courts. Environmental disputes reach the courts under the **Administrative Procedural and Process Code** — for challenges to state bodies — and the **Civil Procedure Code**, with claims involving private companies going to courts of general jurisdiction or **specialised economic courts**. The **Supreme Court** has applied **Article 9 of the Aarhus Convention** directly.

Which one is "yours"? Ask: what **category** is the facility — I, II, III or IV? Does it require an **integrated environmental permit**, an **environmental impact permit**, or merely a **declaration**? Is a **mandatory EIA** required, or only **screening**, or nothing? Which akimat and maslikhat cover the site? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

Under the Environmental Code the path is roughly:

1. **Categorisation.** Facilities are assigned to **Category I, II or III** according to the criteria in the Code's annex; anything not meeting those criteria falls into **Category IV**. Category I captures the most hazardous and polluting activities — including installations with gross emissions of **a thousand tonnes or more**. Getting this wrong, or having it set too low, is the single most consequential thing that can happen to a project's environmental scrutiny, and it is the first thing to check.
2. **Assessment or screening.** The Code makes environmental impact assessment applicable to activities that may have a direct or indirect impact on the environment and public health, but the depth differs sharply by category: **Category I — mandatory EIA; Category II — a screening procedure** determining whether assessment is needed; **Category III — a notification procedure; Category IV — no assessment required**, though it may be done voluntarily. The Code's annex lists which planned activities are subject to mandatory assessment and which to mandatory screening.
3. **Public hearings.** The Code provides for **holding public hearings**, with notice published on the **ecoportal**, on the websites of the relevant agencies and in the media. This is your formal moment, and the notice channel is public and free to monitor.
4. **State environmental review, and disagreements.** The documentation undergoes the state review, and the Code sets out a **procedure for considering disagreements** arising in it — which is where a well-evidenced objection can bite.
5. **Public environmental review.** In parallel, the public may organise its own review, with an organiser and experts, producing a conclusion of its own.
6. **The permit.** **Category I** facilities must obtain an **integrated environmental permit**: a single document authorising

operation of all or part of an installation on condition that it uses **best available techniques**. The application must include a **comparative description of the equipment used or intended against the BAT conclusions** in the official reference books, and the permit sets **technological standards, emission standards and measures on energy efficiency and saving**. **Category II** facilities obtain an **environmental impact permit**; **Category III** file an **environmental impact declaration**; **Category IV** need neither.

7. **Improvement programmes and incentives.** Operators may be relieved of emissions payments where they adopt BAT, and existing plants can qualify by developing and implementing an **environmental performance improvement programme** — a document with concrete commitments that a community can later hold them to.
8. **Transboundary and dispute provisions.** The Code contains procedures for **transboundary impact assessment**, for **consultation with an affected foreign country** in the integrated permit process, and for **environmental dispute resolution**.

The rulebook — the policies that decide the outcome

- **The Environmental Code.** Was the **category** correctly assigned? Was a **mandatory EIA** or **screening** carried out where required? Were **public hearings** held with proper notice? Was a **public environmental review** obstructed? Does the **integrated permit** genuinely rest on BAT? Is the **improvement programme** being implemented?
- **The Aarhus Convention.** Access to information, public participation and access to justice — invocable in Kazakh courts, and applied directly by the Supreme Court.
- **Administrative and civil procedure.** The **Administrative Procedural and Process Code** governs challenges to state bodies; the **Civil Procedure Code** governs claims against private parties, with the cost consequences noted below.
- **Strategic environmental assessment.** Introduced for state programmes and territorial and urban plans, though not yet applied in practice — worth invoking, but do not rely on it.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Kazakhstan's economy rests heavily on oil, gas, coal, uranium and metals, and large industrial facilities are often the dominant employer in their town; the transition to BAT requires significant investment, which creates pressure for accommodation and long transitional timetables; environmental documentation is prepared for operators; and participation, though provided for, is organised in a way Kazakh lawyers describe as revealing opinion rather than shaping decisions. None of this is unlawful, but it explains the lean — and why the category question, the information right and the public review carry disproportionate weight.

The overseers — who watches the decision-makers

- **The administrative courts** — the principal route against state bodies, and the one the public uses most and wins most often.
- **The Supreme Court** — which has applied **Aarhus Article 9** directly, and whose guidance on environmental cases matters.
- **The state environmental inspectorate** — compliance, emissions and permit conditions.
- **The maslikhat and the akimat** — local political accountability and land decisions.
- **Aarhus Centres** — established with international support, providing information and assistance on Convention rights.
- **Environmental NGOs and specialists** — Kazakhstan has long-standing environmental organisations that litigate, publish and have taken cases to the Supreme Court and to the Convention's compliance machinery.

Naming and using the right body matters: here the most consequential early judgment is usually **what category the facility carries, and whether you are challenging the state or the company**.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Kazakh and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson here: **information cases are the ones the public most often wins**, and they are usually the key that unlocks everything else — while suing a company carries a financial risk that suing a state body does not.

Individual Step Success Rates

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Approach	Success Rate	Timeline	Cost (KZT)	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Local opposition only	15-30%	6-24 months	low	Local and akimat pressure
Information request	40-60%	weeks-months	minimal	The documentation obtained
Court claim on access to information	45-65%	3-12 months	low	Disclosure ordered — the public's strongest suit
Challenging the category	25-45%	2-8 months	low	EIA and permit required
Objections at the public hearing	15-30%	1-2 months	minimal	Objections recorded; disagreement procedure engaged
Public environmental review	25-45%	3-9 months	low-moderate	Independent expert conclusion on the record
Challenge to a state body (administrative court)	30-50%	6-24 months	low-moderate	Permit or decision set aside
Claim against a company (civil/economic court)	20-35%	12-36 months	higher; cost risk	Damages, restoration, injunction
Enforcing BAT and the improvement programme	25-40%	12-36 months	low	Conditions and timetables enforced
All steps combined	45-60%	12-36 months	low-moderate	Category raised, permit conditioned or set aside, disclosure won, BAT commitments enforced

Key insight: all steps together are far more effective than any single one — and Kazakhstan's multipliers are the **information right** and the **public environmental review**. The first is where the public most often prevails and where Kazakh courts have applied the Aarhus Convention directly; the second gives communities something rare, a formal expert conclusion of their own that the process must confront. The distinctive disadvantages are that hearings are organised in a way that reveals opinion rather than shaping decisions, that strategic assessment exists on paper but is not yet applied, and that **litigation against companies carries higher fees, counterclaim risk and exposure to the other side's costs** — which is why the state body is usually the better defendant.

A note on cost: information requests and hearing participation cost almost nothing. Administrative challenges to state bodies are comparatively accessible. A public environmental review costs something, because you engage your own experts, but it is the highest-value discretionary spend available. Claims against companies should not be started without advice about costs exposure.

Effectiveness Visualization

SUCCESS PROBABILITY (category raised, permit conditioned or set aside, disclosure won, BAT commitments enforced)

FAVOURABLE SCENARIO (Category I or II facility, documentation obtainable, public review organised, state body as defendant):

All steps combined:	45-60%
Information litigation:	45-65%
Public environmental review:	25-45%
Single step:	5-45%

TILTED SCENARIO (dominant local employer, Category III or IV with no assessment, company as the only realistic defendant):

All steps combined:	25-40%
Information request:	30-50%
Local + media:	10-25%
Single step:	3-15%

How to read this honestly. In Kazakhstan the strongest and most winnable ground is **access to information** — the public prevails there frequently, the Supreme Court has applied Aarhus Article 9 directly, and the documents you obtain are what make every other argument possible. The second strongest is **categorisation**: a facility placed in Category III or IV escapes assessment and permitting altogether, so if the classification is wrong, that single point restores the whole process. The third is the **public environmental review**, which converts community conviction into an expert conclusion the state review has to engage with. What is much harder is defeating a large Category I industrial project outright, and what carries real financial risk is suing the operator directly. Judge success accordingly: **disclosure, reclassification,**

recorded objections, tighter permit conditions and enforced BAT timetables are the achievable wins, and they are worth having.

Step Importance Ranking (When All Combined)

1. **Legal challenges** — beginning with information, which is both cheapest and most often won.
2. **Documentation** — including the documents the information right obtains for you.
3. **Local opposition** — which fills hearings and makes a public environmental review possible.
4. **The hearing and the disagreement procedure** — cheap, and the route by which objections must be considered.
5. **Media** — which reaches the specialists a public review needs and the akimat that must respond.

Winning Kazakh campaigns combined early information requests, a challenge to the category, a serious public environmental review, and litigation aimed at the state body rather than the company.

What Kazakh Campaigns Actually Show

A few patterns recur. **The reform was candid about the problem** — the Environmental Code adopted in 2021 was justified expressly by the **low efficiency of environmental impact assessment and permits** and by **limited public participation in environmental control**, and it rebuilt the system around **four categories, mandatory assessment for Category I, screening for Category II, and integrated permits conditional on best available techniques**. **Aarhus is live law here** — the **Supreme Court has applied Article 9 of the Convention directly**, in a complaint by an environmental NGO concerning an unreliable official response about an environmental permit, and Kazakhstan's jurisprudence on the Convention has been recommended to other Parties; under the Convention's compliance machinery Kazakhstan has examined its legislation and case law, with public involvement, to ensure adequate and effective remedies in judicial review. **The public litigates, and wins on information** — members of the public pursue environmental disputes relatively actively, more often against state bodies than companies, across access to information, participation in assessment, and breaches of environmental law, and **often prevail in access-to-information cases**. **But participation remains thin** — Kazakh environmental lawyers argue that the 2021 Code and the new rules on hearings did not cure the defect, and that the arrangements amount to **revealing public opinion** rather than the effective participation the Convention requires, in which people understand the procedures, how to use them and what results to expect. **And some reforms are not yet real** — **strategic environmental assessment** for state programmes and territorial and urban plans exists in law but has not yet been applied in practice. The through-line: **ask for documents, attack the category, organise your own review, and sue the state rather than the company**.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics: exact location and extent, project type and stage, and what is there now — **rivers, lakes and water intakes, groundwater, steppe and pasture, forest, protected areas, and settlements**. Obtain the environmental documentation and list every admitted impact with its page reference. Pay particular attention to **air emissions**, which drive the category thresholds and dominate Kazakh urban and industrial disputes, and to **water**, which is under severe pressure in much of the country.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the facility's **category — I, II, III or IV**; (b) which instrument follows — **integrated environmental permit, environmental impact permit, declaration**, or nothing; (c) whether a **mandatory EIA**, a **screening**, or only a **notification** applies; (d) which **akimat and maslikhat** cover the site; and (e) whether the operator is a state-linked or dominant local employer, which shapes both politics and litigation risk.

Question 3: What Specific Action Stops It?

Outcomes available here include: the **category raised**, restoring assessment and permitting; **information disclosed**; a

hearing held with objections recorded and the **disagreement procedure** engaged; a **public environmental review** conclusion placed on the record; a **permit set aside** in the administrative courts; **BAT requirements and the improvement programme** tightened and enforced; or the project relocated or redesigned. Map them and pursue at least two.

Question 4: When Is the Decision Final?

Diarise from the **ecoportal**: the notice of the **public hearing** and the window for objections. Then the **state environmental review** and the permit decision. For court action against a state body, the **Administrative Procedural and Process Code** governs time limits, which are short — take advice as soon as a decision is published. Note also the timetables inside any **environmental performance improvement programme**, which create later, dated opportunities to test compliance.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: the operator and its ownership, including any state holding or foreign parent; the facility's economic weight in the town; whether it is seeking **exemption from emissions payments** by committing to BAT; and what transitional timetables it has been given. Use public sources — the ecoportal, the registers, company filings and the official information systems. Build a dated, sourced timeline.

Output of Step 1: a one-page fact sheet with the project's description, its **category** and instrument, whether an EIA or screening applies, the hearing date, the akimat and maslikhat, the ownership chain, every deadline, and the money map.

Worked example: which lever is actually open

Suppose a processing plant is proposed on the edge of a town, upwind of the residential district and near the river the town draws water from, and a notice appears on the **ecoportal**. Working the questions: **Q1** — you record the river, the intake, the prevailing wind, the settlements and the distances. **Q2** — the decisive fact is the **category**: if it is **Category I**, a **mandatory EIA** and an **integrated permit conditional on BAT** follow; if **Category II**, only **screening**; if **III**, merely a **declaration** by the operator; if **IV**, nothing at all. Given the emissions profile, you check whether the classification matches the thresholds. **Q3** — the live levers are an **information request** for the documentation and the categorisation decision, which is the request the public most often wins; a **challenge to the category**; **objections at the hearing** to engage the disagreement procedure; and a **public environmental review** with your own experts. **Q4** — you diarise the hearing from the ecoportal notice and the permit decision. **Q5** — the registers show ownership and whether BAT-based exemptions are being sought. In an afternoon you know that **the category and the documents are the campaign** — and that if litigation follows, the state body, not the company, is the defendant to choose.

STEP 2: DOCUMENTATION

Documentation in Kazakhstan has a particular character: the first battle is usually **getting the documents at all**, and it is a battle the public frequently wins. Access-to-information cases are the area where Kazakh courts most often find for citizens, and where the Supreme Court has applied the Aarhus Convention directly. So treat the information request not as preparation for the campaign but as the campaign's opening move — and build everything else on what it produces.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project, or how conditions stand now around an operating plant.

Air first, where industry is involved. Kazakhstan's category thresholds and its worst public-health disputes turn on **emissions**. Record visible plumes and dust, prevailing wind direction relative to homes and schools, deposition on surfaces and vegetation, and — where available — public monitoring data. Note the distances from the stack or the site to the nearest dwellings.

Water. Document rivers, lakes, canals, groundwater and, above all, **water intakes** serving settlements: location, flow, quality and dependence. Water scarcity is acute across much of the country, which makes abstraction and contamination arguments especially potent.

Land, pasture and protected areas. Document steppe and pasture use, agricultural land, forest, and any protected

area or its buffer, with dated, located photographs.

Homes, health and settlement. Record the settlements affected and their distance from the works, the population, schools and clinics, and existing health complaints as the community experiences them, with dates.

How to hold it. Keep everything dated, located and backed up, held collectively. Fixed-point photographs repeated over time are cheap and unusually persuasive.

LAYER 2: DOCUMENT AND CATEGORY ANALYSIS

Show what the project would do and whether it has been correctly and lawfully handled. Catalogue four things:

1. **The category, and the documents that set it.** Request the **categorisation decision** and the documentation behind it. Does the facility's real emissions profile and activity type match the category assigned? A facility placed in **Category III or IV** escapes assessment and permitting entirely, so if the classification is wrong, that is the whole case.
2. **The assessment or screening.** Was a **mandatory EIA** carried out, or a **screening**, or only a **notification**? Obtain what exists and mine it for admitted impacts with page references, and for omissions — cumulative effects with other installations, water abstraction, downwind settlements, health.
3. **The permit and BAT.** For a **Category I** facility, obtain the **integrated environmental permit** and the **comparative description of equipment against the BAT conclusions**. Does the installation actually apply best available techniques, or is it relying on a transitional timetable? Obtain any **environmental performance improvement programme**, which contains dated commitments.
4. **The hearing and the disagreements.** Record how the **public hearing** was notified — was it on the **ecoportal**, when, and with what notice period? — how it was conducted, who was permitted to speak, and whether objections were recorded and carried into the **disagreement procedure** of the state review.

Get expert eyes on it. This matters more here than in most countries, because the Code gives the public a formal instrument that requires experts: the **public environmental review**. Kazakh universities, technical institutes and experienced environmental organisations can supply the specialists. An independent air-dispersion or hydrological assessment is the most valuable technical product a Kazakh community can commission.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate harm into human terms:

- **Health and air** — households and schools downwind, respiratory and other complaints as the community experiences them, and the distances involved.
- **Water access** — intakes and wells affected, alternatives, and the cost of replacement.
- **Livelihoods** — pasture, agriculture, fishing and small businesses at risk, quantified per household where possible, and honestly set against the employment the facility provides, which in many Kazakh towns is substantial.
- **Cumulative burden** — where a town already hosts several installations, document the combined exposure; this is precisely what single-project assessments omit.

Package this layer twice: a rigorous version in **Russian and/or Kazakh** for the authorities, the hearing and the courts, and a short plain-language version for community meetings.

How to Structure Your Documentation

- **Phase 1: Information first (Weeks 1-4)** — request the categorisation, assessment, permit and programme; record any refusal.
- **Phase 2: Baseline (Weeks 1-6)** — air, water, land, settlement, with fixed-point photographs.
- **Phase 3: Expertise (Months 2-4)** — assemble the experts for a **public environmental review**.
- **Phase 4: Compliance (ongoing)** — BAT timetables and the improvement programme, monitored against their own dates.

Common Documentation Pitfalls (What Fails)

- **Not requesting documents formally** — a written request, and any refusal, is the foundation of the case the public most often wins.
- **Accepting the category** — it determines whether any assessment happens at all.
- **Missing the ecoportal notice** — the hearing window is short and the notice is public.
- **Treating the hearing as the end** — the **disagreement procedure** in the state review is where recorded objections

travel.

- **Skipping the public environmental review** — it is the strongest formal instrument the Code gives you, and it is under-used.
- **Ignoring the improvement programme** — its dated commitments are the most enforceable thing in the file.

Documentation Budget Breakdown (KZT)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Information requests	minimal	minimal
Fixed-point photography, GPS	minimal	modest
Air or water measurement	modest	moderate
Public environmental review experts	modest	the key spend
Administrative court claim	low-moderate	moderate
Translation and printing	modest	modest

Most steps are cheap. The one discretionary spend worth making is the **public environmental review**, because it is the instrument that converts a community's case into an expert conclusion the state process must address.

WHAT TO GATHER, AND WHERE TO FIND IT

Kazakhstan has more public infrastructure for environmental information than most countries in this series. Use it, and litigate where it fails.

The ecoportal. The state environmental portal publishes notices of **upcoming public hearings**, alongside agency websites and the media. Monitoring it is the cheapest habit a community can adopt, and it is how most projects first become visible.

The authorised environmental body. The **categorisation decision**; the **EIA or screening** materials; the **integrated environmental permit** or **environmental impact permit** and its conditions; the **environmental impact declaration** where that is all that exists; the **BAT comparison**; the **environmental performance improvement programme**; and inspection and enforcement records.

The akimat and the maslikhat. Land allocation, local planning documents, hearing organisation records, and correspondence. The maslikhat can request information and take a position.

The draft-regulation portal. Kazakhstan operates a public review portal for **draft normative legal acts, programmes, strategies, plans and concepts**, where written comments may be submitted — useful where the fight is about a plan or programme rather than a single project.

Aarhus Centres. Established with international support, these provide information and assistance on Convention rights and are a practical first stop.

Company and ownership records. The registers for the operator, its shareholders and any parent, plus published disclosures where the operator or its parent is listed.

How to force a document open. Kazakhstan is a **Party to the Aarhus Convention**, whose first pillar is access to environmental information, and Kazakh courts have applied the Convention — including **Article 9** — directly. Requests should be made in writing, citing the Code and the Convention, with proof kept. If refused or answered unreliably, **litigation on access to information is the area in which the public most frequently succeeds**, and it is comparatively inexpensive because the defendant is a state body.

Free and low-cost help. Kazakhstan has established environmental organisations with litigation experience, including before the Supreme Court and the Convention's compliance machinery, alongside universities and technical institutes. **Approaching them early is the highest-value single step**, particularly because a public environmental review needs experts.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the authorised body and the permit type, and the local-ally entries point you to organisations and specialists already working nearby.

Researchers for Hire, and Everyday Research Tools

If digging through corporate filings, agency files and environmental records is beyond a few volunteers, you can hire it out — and this lifts a real weight off novice activists. The field is **opposition research** (or, on the labour side, **corporate-campaign research** — the same methods unions use to expose an employer's finances and record, turned on a developer). For your side, seek **opposition-research firms**, **licensed private investigators** with paid records access, **investigative journalists and freelancers** (often the cheapest, and they publish what they find), **environmental-compliance auditors** to dissect a developer's regulatory record, and **public-records / freedom-of-information specialists** to pry files loose. The investigative tools they use — and that a determined activist can use directly — include **OpenCorporates** and **OCCRP Aleph** (company ownership and cross-border links, worldwide) and **DocumentCloud** (search and OCR large document dumps), with **SEC EDGAR**, **LittleSis** and **MuckRock** as United States examples; most countries have their own equivalents.

For everyday, subject-agnostic research, a small kit goes far: **AI assistants** — Claude.ai, ChatGPT, Google Gemini, and Perplexity for sourced answers — are excellent for explaining a law, summarising a document, or drafting, so long as you **always verify** what they tell you, because they can invent citations; **Google Scholar** and Google's advanced search operators for studies and buried files; and the **Wayback Machine** for pages a developer or agency has quietly deleted.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In Kazakhstan, organising has a specific and somewhat unusual objective: to make a **public environmental review** possible. The Code gives the public a formal instrument — the right to organise its own environmental review, with a designated organiser and its own experts, producing a conclusion the state process must confront. That is not something an individual can easily do alone; it needs a group willing to act as organiser, funds for specialists, and a community that can supply the local evidence the experts will work from. A campaign built toward that instrument is aiming at the strongest formal lever the Code provides.

Three principles carry special weight here: **request first, organise around what returns** (the information right is the public's most reliable win, and the documents shape everything); **plan for the review, not just the hearing** (hearings, as Kazakh lawyers observe, tend to reveal opinion rather than change decisions, whereas an expert conclusion has to be engaged with); and **be honest about the employer** (in many towns the facility is the dominant employer, so a campaign framed against pollution and for enforceable BAT commitments will hold a community together far better than one framed against the plant's existence).

PHASE 1: FOUNDATION (Weeks 1-4)

Step 1a: Start with the most affected — and file the requests. Reach the households closest to the works, downwind and downstream, and in the same week submit written requests for the **categorisation decision**, the **assessment or screening**, the **permit** and the **improvement programme**. Begin fixed-point photographs.

Step 1b: Affinity groups by concern. Let people join through air and children's health, water and the intake, pasture and land, or noise and dust. In industrial towns, **health of children** is the concern that crosses the line between plant workers and everyone else.

Step 1c: Identify a potential organiser and experts. Because the **public environmental review** requires an organiser and specialists, begin early: an existing NGO, an association, or a group formed for the purpose, plus contacts at a university or technical institute.

PHASE 2: PUBLIC LAUNCH (Weeks 4-10)

Step 2a: Watch the ecoportal and publicise the hearing. Find the notice, confirm the date and venue, and tell the affected streets and villages. Many hearings pass unattended simply because nobody saw the notice.

Step 2b: Prepare objections that travel. A hearing that merely records opinion is of limited use, but objections that are **specific, evidenced and written** can be carried into the **disagreement procedure** of the state environmental review. Prepare them accordingly: one issue, one page, one piece of evidence.

Step 2c: Attend in numbers and record the process. Note attendance, who was allowed to speak, for how long, what was answered, and whether objections were entered in the record. Photograph the notice and the venue.

Step 2d: If documents were refused, escalate. A refusal or an unreliable answer is the strongest litigation ground available to the Kazakh public (Section 8D).

PHASE 3: COALITION EXPANSION (Months 2-6)

Step 3a: Broaden the alliance. Bring in downwind and downstream settlements, parents' and school communities, medical professionals, pasture users and farmers, the **maslikhat**, universities and technical institutes, and national environmental organisations with litigation experience.

Step 3b: Coalition agreements. Agree who acts as **organiser** of the public environmental review, who holds documents, who speaks publicly, and who instructs any lawyer. Decide explicitly whether litigation will target the **state body** or the **company**, because the cost consequences differ sharply.

Step 3c: Launch the public environmental review. Appoint the organiser, engage the experts, define the questions precisely, and produce a conclusion capable of being placed before the state review and, if necessary, a court.

PHASE 4: SUSTAINED PRESSURE (Months 4-12)

Step 4a: Litigate information first. Where documents are withheld or answered unreliably, bring the claim — this is where the public wins most, and where the Aarhus Convention has been applied directly.

Step 4b: Challenge the category or the decision. Where the classification is wrong or the permit was granted defectively, challenge the **state body** in the **administrative courts**.

Step 4c: Hold BAT and the improvement programme to their dates. Where a Category I operator has committed to best available techniques and an improvement programme, those commitments have timetables. Monitor them, and report failures — this is where long-run gains are made.

Step 4d: Public actions, with judgement. Public meetings, petitions to the akimat and maslikhat, and press work are the standard repertoire. Assemblies are regulated and require compliance with the applicable rules, so take advice, keep everything lawful and orderly, and avoid confrontation at industrial sites. In a town where the plant is the main employer, framing matters as much as tactics.

Worked example: a community that unlocks the strong levers

A town downwind of a processing plant sees increasing dust and rising complaints of children's respiratory illness, and a notice appears on the **ecoportal** about an expansion. Anger rises and a protest at the plant gates is proposed — the course most likely to split a town where many families depend on the plant's wages. What converts the anger into force happens differently. First, three residents file **written requests** for the **categorisation decision**, the **assessment**, the **permit** and any **improvement programme**; when the answers are incomplete, that refusal becomes the strongest litigation ground available. Second, they begin **fixed-point photography** and record wind direction, distances and deposition, while parents and a local doctor compile dated health complaints. Third, they check whether the facility's emissions profile matches its **category** — because if it sits below **Category I**, it escapes both mandatory assessment and the **integrated permit with BAT**, and that classification becomes the whole case. Fourth, they publicise the **hearing procedure** of the state review. Fifth — the decisive step — an association acts as **organiser of a public environmental review**, engaging university specialists to produce an independent conclusion on dispersion and health exposure. Meanwhile the campaign is framed not as closing the plant but as **enforcing BAT and the improvement programme on their own timetable**, which keeps workers and neighbours on the same side. The lesson generalises: **in Kazakhstan, the documents you request in week one and the expert review you organise by month four are what make the category challenge and the court case possible.**

Opposition Building Budget: Year-Long Campaign (KZT)

Low to moderate. Information requests, hearing attendance and petitions cost almost nothing. Fixed-point photography and simple measurement are cheap. The significant line is the **public environmental review**, which requires paying experts — and it is the spend most likely to change the outcome. Administrative litigation against a state body is comparatively affordable; **litigation against a company should not be started without advice on costs exposure**, since losing can mean paying the other side. Keep transparent, collective accounts.

Hiring Help to Run the Campaign

You need not carry the whole campaign yourselves. A whole industry runs opposition campaigns for hire — the visible turnout at hearings, the public comment, the messaging and the media — known as **grassroots-for-hire** or **public-affairs / grassroots-advocacy** consulting. It usually serves whoever pays, most often the deep-pocketed side, but you can hire the same muscle for yours: **public-interest communications and PR firms, campaign and field-organising firms** that run turnout and canvassing, and, if the fight becomes a local vote, **ballot-measure consultants**. People outside that niche can carry a piece too — a **PR or crisis-communications firm**, a **campaign consultant**, a **digital-advocacy shop**, or a seasoned **community organiser** — taking weight off exhausted volunteers who feel they are carrying the opposition alone. Two rules hold. Hire them **transparently**, and never let anyone fake a grassroots front: that is *astroturfing* — dishonest, and ruinous if exposed; the aim is to amplify a real community, not fabricate one. And mind your **setting** — where public campaigning is repressed or dangerous this market may be absent and a visible "show" perilous, so favour trusted journalists and international allies over hired campaigners, and never let paid help expose your people.

STEP 4: LEGAL CHALLENGES

Kazakhstan gives communities a structured set of instruments, one of which — the public environmental review — is rare. Three tracks — the administrative process, the public review, and the courts.

TRACK 1: THE ADMINISTRATIVE PROCESS (the front door)

- **Request the documents.** Ask in writing for the **categorisation decision**, the **EIA or screening** materials, the **integrated environmental permit** or **environmental impact permit** and its conditions, the **BAT comparison**, and the **environmental performance improvement programme**. Cite the Environmental Code and Kazakhstan's obligations under the **Aarhus Convention**. Keep proof of every request.
- **Contest the category.** The category determines everything: **Category I** brings a **mandatory EIA** and an **integrated permit conditional on BAT**; **Category II** only **screening**; **Category III** merely a **declaration**; **Category IV** nothing. Where the activity type or the emissions profile points higher than the category assigned, say so in writing with your evidence — this single point can restore the entire process.
- **Use the hearing properly.** Watch the **ecoportal** for the notice, attend in numbers, and file **written, specific, evidenced objections** so that they can be carried into the **procedure for considering disagreements** in the state environmental review. Record how the hearing was conducted.
- **Engage the disagreement procedure.** The Code provides a route for disagreements arising in the state review. Objections that are precise and documented are the ones that survive into it.
- **Hold BAT and the programme to their dates.** Where an operator claims BAT or has an **improvement programme** with commitments and timetables, monitor them and report failures.

TRACK 2: THE PUBLIC ENVIRONMENTAL REVIEW (the distinctive instrument)

- **What it is.** The Code provides for a **public environmental review**, organised by members of the public, with a designated **organiser** and its own **experts**, running alongside the state environmental review.
- **Why it matters.** It converts community concern into a **formal expert conclusion** that the process must confront, rather than an opinion that can be noted and set aside. In a system whose weakness is that hearings reveal opinion rather than shape decisions, this is the instrument designed to close that gap.
- **How to use it well.** Constitute the organiser properly; define the questions narrowly and technically — dispersion, abstraction, cumulative exposure, BAT comparison — rather than broadly; engage credentialed specialists; and produce a conclusion in a form that can be filed with the authority and, if needed, exhibited in court.

TRACK 3: THE COURTS

- **Access to information — the strongest suit.** Where documents are refused or answered unreliably, litigate. Kazakh courts have handled a broad range of environmental disputes and **the public often prevails on access to information**; the **Supreme Court has applied Article 9 of the Aarhus Convention directly** in a case brought by an environmental NGO over an unreliable official response concerning an environmental permit.
- **Challenges to state bodies.** Proceedings against public authorities run under the **Administrative Procedural and Process Code**. This is the route the public uses most and wins most, and it is comparatively inexpensive. Time limits are short — take advice as soon as a decision is published.
- **Claims against companies — proceed with advice.** Claims involving private parties go to courts of general jurisdiction or **specialised economic courts** under civil procedure. Be clear-eyed: **higher court fees, the risk of counterclaims, and potential liability for the opposing party's legal costs** are real barriers. Where the same

outcome can be achieved by challenging the permit or the categorisation decision, challenge the state body instead.

- **Invoke the Convention directly.** Kazakhstan's courts have applied Aarhus provisions directly, and Kazakh jurisprudence on the Convention has been recommended to other Parties — so plead it, particularly on information and on the adequacy of remedies.

The three legal challenge types

TYPE 1: THE ADMINISTRATIVE PROCESS (the front door)

Document requests, the category challenge, the hearing and the disagreement procedure, and BAT and programme compliance.

TYPE 2: THE PUBLIC ENVIRONMENTAL REVIEW (the distinctive instrument)

A citizen-organised expert review producing a conclusion the state process must engage with.

TYPE 3: THE COURTS

Information litigation first; administrative challenges to state bodies; claims against companies only with advice on costs exposure; Aarhus pleaded directly.

Legal Strategy Decision Tree

1. **Do you have the documents?** → If not, request them in writing; if refused, **litigate on information** — the public's most winnable claim.
2. **Is the category right?** → If the emissions profile or activity points to a higher category, challenge it; that restores assessment and permitting.
3. **Is a hearing scheduled on the ecoportal?** → Attend, file written objections designed to enter the **disagreement procedure**, and record the conduct.
4. **Can you organise a public environmental review?** → Do it; it is the strongest formal instrument available to you.
5. **Is litigation needed?** → Prefer the **state body** as defendant under administrative procedure; take advice before suing the company.

Litigation Success Factors

A written request and a documented refusal; a categorisation mismatch shown against the Code's own criteria; specific, evidenced written objections on the hearing record; an independent **public environmental review** conclusion; **Aarhus** pleaded directly, especially on information; the **state body** as defendant where possible; and prompt filing within administrative time limits.

What to Avoid: Legal Failures

Attending a hearing without filing written objections; accepting the category; skipping the public environmental review because it costs something; missing the short administrative time limits; and suing the operator without advice, thereby exposing the community to the other side's costs.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Kazakhstan.

Documents refused or answered unreliably → access-to-information claim (the strongest ground). Feed it with: your written requests, the responses, and the Aarhus obligations.

Emissions profile or activity type inconsistent with the assigned category → reclassification; assessment and permit required. Feed it with: the Code's criteria and the facility's own figures.

No mandatory EIA where the category requires one → defective process. Feed it with: the category and the absence of assessment materials.

Hearing notified late or conducted so objections were not recorded → procedural defect; disagreement procedure. Feed it with: the ecoportal notice and its date, and your record of the hearing.

Permit granted without a genuine BAT comparison → the integrated permit is unsupported. Feed it with: the permit file and the BAT conclusions for that sector.

Improvement programme commitments missed → enforcement. Feed it with: the programme's own dates and your dated evidence.

Cumulative exposure ignored → deficient assessment. Feed it with: the other installations in the same town or catchment, and your public environmental review conclusion.

The pattern: **lead with information and the category**, put an expert conclusion on the record, and choose the state body as your defendant.

STEP 5: MEDIA STRATEGY

Media matters in Kazakhstan for reaching the specialists a public environmental review requires, for making a hearing notice actually known, and for putting pressure on akimats and operators that respond to visibility.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the categorisation decision that placed a large plant outside assessment, the refusal of a document request, a named parent whose child is ill downwind, the ecoportal notice with its date, and dated photographs. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a documented defect + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel: **air quality and children's health, water scarcity and intakes**, and **a project that escaped assessment through its category** — with a fourth, **documents refused**, which is both newsworthy and the strongest legal ground.

Know the Outlets That Cover This Beat

Map the national outlets in **Kazakh and Russian** and their environment correspondents, the independent digital media that cover ecology and industry closely, and regional outlets in the oblast, which reach affected towns directly.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer a site visit and access to affected residents, and be scrupulously accurate — in a town where the plant is a major employer, an overstatement will be used to divide the community as well as to discredit the campaign.

Why media matters even when it doesn't make the front page

Coverage reaches the university specialists a **public environmental review** needs, the national organisations that litigate, the maslikhat deputies who can ask questions, and the operator's own management and investors. It also spreads word of a hearing that many affected people would otherwise never learn about.

Sample Media Timeline

Launch with the document refusal or the ecoportal notice; refresh at each milestone — the category challenge, the hearing and its conduct, the public environmental review conclusion, the court filing, and each missed date in the improvement programme.

Media Measurement

Track coverage, but measure what matters: whether documents are released, whether the category is revisited, whether a

public review gets underway, whether the akimat or maslikhat engages, and whether BAT commitments move.

Amplifying at Scale — Media Help for Hire

Beyond pitching reporters yourselves, you can pay to spread the story at scale — different from a single advert or one call to a local outlet, and available at any reach from local to global. **Public-relations and communications firms** run earned-media campaigns — placing op-eds, orchestrating coverage, staging the media push; for the cause side, public-interest firms such as Fenton, BerlinRosen and M+R work for advocacy groups and unions, not only corporations. **Press-release / newswire distribution services** send a release across a wide network of journalists and outlets — PR Newswire, Business Wire and GlobeNewswire at the global, higher-budget end; EIN Presswire, PRWeb and eReleases far cheaper and nonprofit-friendly, some with cause-specific wires. And **digital and social amplification** shops run targeted paid campaigns and creator partnerships. Two rules: amplify a *true* story from a *real* community — never manufacture fake outrage; and where public visibility is dangerous, favour trusted journalists and international allies over paid amplification.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated and sourced. Submit written requests and objections through the authority's registry or electronic system and keep proof — in Kazakhstan the documented request and the documented refusal are the foundation of the claim the public most often wins. Have a lawyer review anything heading to court.

8A. Email to a reporter (story pitch)

Subject: [Town, Oblast]: [plant/project] classified Category [III/IV] — no assessment required, documents not provided

Dear [name],

[Operator] is proposing [project] at [location], [distance] from the nearest homes in [district] and [distance] upwind of [school/settlement]. A hearing notice appeared on the ecoportal on [date].

The facility has been assigned **Category [III/IV]**, which means [no mandatory environmental impact assessment / no permit]. Its declared emissions and activity type appear to us to meet the criteria for **Category [I/II]**. We attach our analysis.

On [date] we requested the categorisation decision and the assessment materials. [No reply / an incomplete reply] was received; copy attached.

[Number] households and [school/clinic] lie within [distance]. I can arrange interviews and a site visit. Could we speak this week?

[Name] · [Community group] · [phone] · [email]

8B. Request for the environmental documentation

To: [the authorised environmental body / the department of ecology of [oblast]] **Subject:** Request for environmental information concerning [project/facility], [location]

We, residents of [settlement], [district], [oblast], request the following environmental information: 1. the **decision assigning the category** (I, II, III or IV) to the facility, and the documents on which it was based; 2. the **environmental impact assessment** materials, or the **screening** or **notification** documents, as applicable; 3. the **integrated environmental permit** or **environmental impact permit** and its conditions, including technological and emission standards, or the **environmental impact declaration**; 4. the **comparative description of equipment against the best available techniques conclusions** submitted with any integrated permit application; 5. any **environmental performance improvement programme** and its timetable; 6. inspection and enforcement records for the facility.

This request is made under the Environmental Code of the Republic of Kazakhstan and under the Republic's obligations as a Party to the **Aarhus Convention** on access to information, public participation and access to justice in environmental matters.

Please provide the information in writing. If any part is withheld, please state the legal basis.

[Names, settlement, date, contact — keep proof of submission]

8C. Written objections for the public hearing

To: [the organiser of the public hearing; the authorised environmental body] **Subject:** Written objections concerning [project], public hearing of [date]

We, residents of [settlements], submit the following objections, and request that they be **entered in the record of the hearing** and carried into the **procedure for considering disagreements** in the state environmental review:

1. **Category.** The facility has been assigned Category []. ***Its [declared gross emissions of ___ tonnes / activity type] correspond to the criteria for Category [],*** which requires [a mandatory environmental impact assessment and an integrated environmental permit]. We request re-examination of the categorisation.
2. **Air and health.** The nearest dwellings lie [distance] from the site, downwind on the prevailing [direction] wind; [school/clinic] lies at [distance]. The documentation does not assess exposure at these receptors.
3. **Water.** The [river/intake/aquifer] supplying [number] households lies [distance] away; abstraction and discharge are not adequately assessed.
4. **Cumulative impact.** [Number] other installations operate within [distance]; combined exposure is not assessed.
5. **Best available techniques.** [The application does not demonstrate use of BAT as against the relevant conclusions / relies on a transitional timetable without interim limits.]

[Names and signatures, settlement, date]

8D. Complaint about refusal or unreliable response

To: [the superior authority / the authorised environmental body] **Subject:** Complaint concerning failure to provide environmental information — [project/facility]

On [date] we requested [list documents], as recorded in the attached submission. [No response was received within the period established by law / the response received on [date] was incomplete and did not address items ___ / the response was inaccurate in that ___].

Access to environmental information is guaranteed by the Environmental Code and by the Aarhus Convention, to which the Republic of Kazakhstan is a Party. We note that the courts, including the Supreme Court, have applied the Convention's provisions on access to justice directly in environmental matters.

We request that the information be provided in full within [period], and that we be informed of the measures taken. Failing this, we shall seek judicial protection.

[Names, date, contact]

8E. Notice organising a public environmental review

To: [the authorised environmental body; the akimat of [district]] **Subject:** Notification of the organisation of a public environmental review — [project/facility]

[Organisation/initiative group], acting as **organiser**, hereby notifies of the organisation of a **public environmental review** in respect of [project/facility] at [location].

Subject of the review: [the environmental impact assessment materials / the application for an integrated environmental permit / the screening documentation].

Questions to be examined: (i) dispersion of emissions and exposure at the nearest residential receptors; (ii) abstraction from and discharge to [water body] and effects on the [intake]; (iii) cumulative impact with [other installations]; (iv) correspondence of the proposed technology with the **best available techniques conclusions** for this sector.

Experts: [names, qualifications, institutions].

We request provision of the documentation necessary for the review, and that the conclusion of the public environmental review be taken into account in the state environmental review.

[Organiser, date, contact]

8F. Complaint on non-compliance with permit conditions or the improvement programme

To: [the authorised environmental body; the state environmental inspectorate] **Subject:** Complaint concerning non-compliance by [operator] with [permit no. / the environmental performance improvement programme]

We report the following non-compliance in respect of [facility] at [location]: 1. **Permit conditions.** [Condition ___ requires ___ by ; *as of [date] this has not been done — see attached dated photographs/measurements.*] 2. **Improvement programme.** [The programme commits the operator to ___ by ; that date has passed without implementation.] 3. **Observed effects.** [Emissions, dust, discharges, with dates.]

We request inspection, enforcement measures, and a written reply informing us of the action taken.

[Names, settlement, date]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

Residents of [town] challenge the classification of [project] and organise a public environmental review

Residents of [settlements] have asked the authorities to re-examine the assignment of [project] to **Category [___]**, arguing that its declared emissions and activity type meet the criteria for **Category [___]**, which would require a **mandatory environmental impact assessment** and an **integrated environmental permit based on best available techniques**.

The residents have also notified the organisation of a **public environmental review**, with experts from [institution], to examine dispersion, water and cumulative impact. "[Short, human quote from a resident]," said [name].

On [date] the residents requested the categorisation decision and assessment materials; [no reply has been received / the reply was incomplete].

Contact: [name, phone]. Documents, photographs and interviews available.

8H. Instruction to counsel

Subject: Proposed proceedings concerning [project/facility]

Dear [counsel],

We instruct you to advise on and, if appropriate, bring proceedings concerning [project/facility] at [location].

Priority one — access to information. On [dates] we requested [documents]; the responses were [absent/incomplete/unreliable]. We wish to bring a claim under the **Administrative Procedural and Process Code**, pleading the Environmental Code and **Article 9 of the Aarhus Convention**, which the Supreme Court has applied directly.

Priority two — categorisation and permit. We consider the facility was wrongly assigned **Category [___]**, avoiding [mandatory assessment / an integrated permit conditional on BAT]. Please advise on challenging that decision of the state body, and on time limits.

Please also advise on whether any claim against the operator is prudent, having regard to court fees, counterclaim risk and **liability for the opposing party's costs**.

We can provide: our requests and the responses; the ecoportal notice; our written objections and the hearing record; dated photographs and measurements; and the conclusion of our **public environmental review** by [experts].

[Date, signature]

Important Caveat

Templates are starting points. Adapt every one to your real facts and attach your evidence. Three things to remember: **monitor the ecoportal**, because the hearing notice is published there and the window is short; **make every request in writing and keep proof**, because refusal is the ground on which the public most often wins; and **take advice before suing a company**, because losing can mean paying the other side's costs — challenging the state body is usually the better route.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE

RAPID-FIRE VERSION

Kazakhstan rewards a few cheap, precise acts — and one of them is the claim the public most often wins. In rough order of impact for the effort:

1. **Check the ecoportal.** Notices of upcoming **public hearings** are published there, on agency websites and in the media. Many hearings pass unattended only because nobody looked.
2. **Find out the category.** Is the facility **Category I, II, III or IV**? That determines whether there is a **mandatory assessment**, a **screening**, only a **declaration**, or nothing at all. It is the most consequential fact about any project here.
3. **Request the documents in writing** (Section 8B) — the categorisation decision, the assessment or screening, the permit and its conditions, the BAT comparison, and any improvement programme. Cite the Environmental Code and the **Aarhus Convention**, and keep proof.
4. **If they are refused or answered unreliably, complain and then litigate** (Sections 8D, 8H). This is the strongest and most winnable claim available to the Kazakh public, and the Supreme Court has applied Aarhus Article 9 directly.
5. **Attend the hearing and file written objections** (Section 8C) — specific, evidenced, one issue per page — so they can travel into the **disagreement procedure** of the state review.
6. **Photograph from fixed points, dated**, and record wind direction, distances and any deposition.
7. **If you can raise modest funds, organise a public environmental review** (Section 8E) — the strongest formal instrument the Code gives you.

If you do only the first four, you have found the project, established whether it escaped assessment through its category, and put yourself on the ground where citizens most often win. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Kazakhstan's tilt is not an absence of law. The Environmental Code is modern and European in design. The tilt is that **participation is organised to reveal opinion rather than to shape decisions**, and that litigation against companies carries financial risk.

What This Tilt DOES (and DOESN'T DO)

The tilt means large industrial facilities are often the dominant employer in their town; the transition to best available techniques requires heavy investment and long transitional timetables; environmental documentation is prepared for operators; hearings, in the assessment of Kazakhstan's own environmental lawyers, do not yet deliver **effective participation**; **strategic environmental assessment** exists in law but has not been applied in practice; and suing a company brings **higher fees, counterclaim risk and exposure to the other side's costs**. It does **not** close the doors: **access to environmental information** is guaranteed and is where the public most often wins; the **ecoportal** publishes hearing notices; the **category** can be challenged, and challenging it restores the whole assessment and permitting process; the **public environmental review** lets citizens produce their own expert conclusion; the **disagreement procedure** carries recorded objections into the state review; **integrated permits** must rest on **BAT**; and the **Supreme Court has applied Aarhus Article 9 directly**.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **Documents obtainable, category questionable, review organisable.** The strongest position: attack the classification, put an expert conclusion on the record, and litigate the state body if needed.
- **Mixed.** A properly classified Category I facility with a genuine assessment. Weight shifts to **BAT**, permit conditions, the **improvement programme** and its timetable, and cumulative-impact arguments through a public review.
- **Entrenched.** A dominant employer, a state-linked operator, or a facility in Category III or IV with no assessment at all and documents withheld. Assume the project will proceed; concentrate on **information litigation, reclassification**, monitoring, and enforceable emission commitments — and frame the campaign so the town is not asked to choose between health and wages.

Documented Kazakh Dynamics

The record shows a reformed framework whose practice lags its design. **The reform was explicit about the failure it was fixing** — the Environmental Code adopted in January 2021, in force from July, was justified by the **low efficiency of**

environmental impact assessment and permits, outdated waste regulation, an inappropriate method of valuing environmental damage, and **limited public participation in environmental control**, and it rebuilt the system on **four categories, mandatory assessment for Category I, screening for Category II, declaration for Category III**, and **integrated permits conditional on best available techniques**. **Aarhus is applied, not merely ratified** — the **Supreme Court applied Article 9 of the Convention directly** in a complaint by an environmental NGO about an unreliable official response concerning an environmental permit, Kazakh jurisprudence on the Convention has been recommended to other Parties, and under the Convention's compliance machinery Kazakhstan examined its legislation and case law, with public involvement, to ensure adequate and effective remedies in judicial review. **The public litigates and wins on information** — environmental disputes are pursued relatively actively, more often against state bodies than companies, covering access to information, participation in assessment and breaches of environmental law, and the public **often prevails on access to information**. **But participation is still thin** — Kazakh environmental lawyers argue that the 2021 Code and the new hearing rules did not remove the underlying deficiency, and that what is provided amounts to **revealing public opinion** rather than effective participation in which people understand the procedures, how to use them, and what results to expect. **And barriers persist against companies** — higher court fees, counterclaims, and liability for the opposing party's costs. The through-line: **use the information right, attack the category, produce your own expertise, and choose your defendant carefully**.

Assessment Framework — Determine Your Situation

Ask: what category, and does it match the facility's real profile? Have we requested the documents in writing, and what came back? Is there a hearing on the ecoportal, and can we file written objections that will travel into the disagreement procedure? Can we constitute an organiser and fund experts for a **public environmental review**? Is the defendant, if we litigate, the **state body** or the company? Is the operator the town's main employer, and how should that shape our framing? The answers tell you whether this is an information case, a categorisation case, or a long compliance campaign.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Kazakh communities use petitions, appeals to the akimat and maslikhat, public meetings and media work, and environmental issues — particularly urban air quality and water — have generated significant public attention. Public assemblies are regulated and require compliance with the applicable procedures, so take advice, keep everything lawful and orderly, and avoid confrontation at industrial sites. One consideration is specific to this country: where the facility is the town's dominant employer, actions framed against the plant's existence can divide a community, whereas action framed around **emissions, health and enforceable BAT commitments** tends to hold it together — and is also the framing that fits the legal instruments best.

Honest Assessment

Tilted fights are harder, and Kazakhstan's difficulty is that a modern code has not yet produced modern participation. But "harder" is not "hopeless": this is a jurisdiction where citizens regularly litigate against state bodies, where they **win access-to-information cases**, where the **Supreme Court has applied the Aarhus Convention directly**, and where the law lets communities commission their **own expert environmental review**. Concentrate force where the tilt is weakest — **information, categorisation and independent expertise** — and pick the defendant that does not expose your community to costs.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with, or the product of a system still bedding in. But capture is real. Read your situation actor by actor, and publish documents rather than accusations.

The categorisation decision. The most consequential discretionary act in the system: a facility placed in **Category III or IV** escapes assessment and permitting altogether. Signs: a substantial installation classified below its evident emissions profile; a categorisation decision that is not produced on request. Lever: the written request, the Code's own criteria, and a challenge to the state body.

The documentation and its authors. Prepared for the operator. Signs: nearest receptors not modelled, cumulative impact absent, BAT comparison thin or reliant on transitional timetables. Lever: the **public environmental review**, which exists precisely to put independent expertise against it.

Information practice. Withholding or answering unreliably is both a barrier and the community's best legal opening. Signs: silence, partial answers, or responses that do not address what was asked. Lever: complaint, then litigation — the claim the public most often wins.

Hearing organisation. Notices published late or narrowly, venues and timing that suppress attendance, objections not recorded. Lever: the ecoportal notice with its date, your record of the hearing, and the **disagreement procedure**.

BAT and transitional timetables. The point at which environmental ambition meets investment cost, and where quiet extensions happen. Signs: repeated postponement of programme milestones. Lever: the **improvement programme's** own dates and a compliance complaint.

How to act on it, safely. Document from the ecoportal, the registers and your own correspondence before you speak. Route genuine concerns to the **authorised environmental body**, the **state environmental inspectorate**, the **maslikhat**, and — where appropriate — the Aarhus compliance machinery, and above all into your **court filings**, where they are protected and consequential. Do not publish unproven accusations about named individuals: in a system where documents are obtainable and information cases are winnable, let the documents carry the argument.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Kazakhstan the timeline is shaped by three things: the short window after an **ecoportal** notice, the months needed to organise a **public environmental review**, and the multi-year timetables inside **BAT** commitments and improvement programmes.

Realistic 12-Month Campaign Timeline

Weeks 1-4 (Information first). - Check the **ecoportal** and identify any hearing notice and its date. - Submit **written requests** for the categorisation decision, the assessment or screening, the permit and conditions, the BAT comparison and any improvement programme (Section 8B). - Establish the facility's **category** and test it against the Code's criteria. - Begin **fixed-point photographs**; record wind direction, distances and receptors.

Weeks 4-10 (The hearing window). - Publicise the hearing across the affected settlements. - File **written objections** designed to enter the **disagreement procedure** (Section 8C), and attend in numbers. - Record how the hearing was conducted. - Where documents were refused or answered unreliably, file the **complaint** (Section 8D).

Months 3-6 (Expertise and escalation). - Constitute an **organiser** and notify the **public environmental review**, engaging specialists (Section 8E). - Where the classification is wrong, press the **category challenge** in writing. - If information remains withheld, instruct counsel for an **administrative claim**, pleading the Code and **Aarhus Article 9** (Section 8H). - Broaden the coalition — downwind settlements, parents and medical professionals, the maslikhat, universities.

Months 6-12 (Conclusions and compliance). - File the **public environmental review conclusion** with the authority and, where relevant, the court. - Pursue the administrative challenge to the categorisation or the permit. - Begin systematic monitoring of **permit conditions**, **BAT** and the **improvement programme** against their own dates (Section 8F). - Sustain media at each milestone.

Beyond 12 months. - Improvement programmes and BAT transitions run for years; treat each milestone date as a scheduled opportunity. - Watch for **permit revisions** and expansions, which reopen the process. - Keep the fixed-point record and the expert relationship alive.

Warning Signs — Act Early

A hearing notice appearing on the ecoportal; survey or drilling work; a category assigned quietly to a large installation; a permit revision; visible increases in dust or emissions; a change of operator. Each is a trigger to **file the written request that week** — because in Kazakhstan the documents are both the case and the most winnable claim.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: monitor the ecoportal; request documents in writing and preserve refusals; test the **category** against the Code's criteria; file **written objections** that can travel into the disagreement procedure; organise a **public environmental review**; plead **Aarhus** directly; litigate the **state body** rather than the company; and hold **BAT and improvement-programme dates** to account for years. Losing campaigns: attend a hearing without filing anything in

writing; accept the category; skip the public review because it costs money; and sue the operator without advice on costs.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Kazakhstan takes several forms, and it is worth naming them so you recognise a win when you get one: - **documents obtained**, or **disclosure ordered by a court** — the outcome the public achieves most often; - a facility **reclassified into a higher category**, restoring **mandatory assessment** and an **integrated permit**; - a **hearing** properly held, with objections recorded and carried into the **disagreement procedure**; - a **public environmental review conclusion** placed on the record, which the state review must confront; - **permit conditions and BAT requirements tightened**, and an **environmental performance improvement programme** enforced on its own timetable; - a decision of a state body **set aside** in the administrative courts; - and a community that knows how to use the ecoportal, the information right and its own experts the next time.

Kazakh communities and organisations have achieved these, including before the Supreme Court.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If documents have been refused, continue — that is the strongest claim you have and the one the public most often wins. If the category is questionable, that challenge is worth more than any number of objections, because it restores the entire process. If the facility is properly classified and assessed, shift decisively to **BAT, permit conditions and the improvement programme**, whose dated commitments give you years of enforceable opportunities. And if litigation is being considered against the operator rather than the state, get advice first: **costs exposure is real**, and the same result can often be achieved by challenging the permit or the classification instead.

The Bottom Line

Kazakhstan rebuilt its environmental law in 2021 because the previous system delivered **low-efficiency assessment and permits** and **limited public participation** — and the new Environmental Code is modern in design, sorting facilities into **four categories**, requiring **mandatory environmental impact assessment** and an **integrated environmental permit conditional on best available techniques** for **Category I**, **screening** for Category II, a **declaration** for Category III, and nothing for Category IV. Around that sit real instruments: **public hearings** notified on the state **ecoportal**; a **procedure for considering disagreements** in the state environmental review; and, distinctively, a **public environmental review** that lets citizens appoint their own organiser and experts and produce a conclusion the process must confront. Kazakhstan is a **Party to the Aarhus Convention**, and this is operative law — the **Supreme Court has applied Article 9 directly**, Kazakh jurisprudence on the Convention has been recommended to other Parties, and members of the public litigate environmental disputes relatively actively and **often prevail on access to information**. The honest limits are equally clear: hearings still, in the judgement of Kazakhstan's own environmental lawyers, **reveal opinion rather than shape decisions**; strategic environmental assessment exists in law but has not yet been applied; and suing a company brings **higher fees, counterclaims and liability for the other side's costs**. Communities that watch the ecoportal, request every document in writing and preserve the refusals, test the category against the Code's own criteria, file written objections that travel into the disagreement procedure, organise their own expert review, plead the Convention directly, choose the state body as defendant, and hold BAT timetables to their dates have obtained disclosure, forced reclassification, put independent expertise on the record and tightened permits. No single step wins; the combination does. Start today by opening the ecoportal and asking one question: **what category is this facility, and who decided?**